

MINUTES OF MEETING
WAGONER COUNTY BOARD OF COMMISSIONERS
MONDAY, OCTOBER 17, 2022

The Board of Wagoner County Commissioners met in the Commissioners Meeting Room. Chairman Chris Edwards, Vice Chairman Tim Kelley, Member James Hanning, and County Clerk Lori Hendricks were present. Assistant District Attorney Andy Williams was also present. Advance notice of the meeting was posted on the Wagoner County Courthouse bulletin boards and the County website on October 14, 2022.

- I. The meeting was called to order by Commissioner Edwards at 9:01 a.m. Roll was called with the following responses: Hanning, present, Edwards, present, Kelley, present.
- II. Prayer was led by Lori Hendricks and Pledge of Allegiance was led by Rachel Cooper.
- III. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve the Consent Agenda except for item E.2. The motion was approved with the following votes cast: Hanning, aye; Edwards, abstain; Kelley, aye.
 - A. Approve or disapprove minutes of commission meeting held on October 11, 2022.
 - B. Approve or disapprove the labor waiver to dump dirt off county right of way at 804 N Graham, Wagoner OK 74467. Property Owner Michael R. Scroggins: District Two.
 - C. Approve or disapprove Assessor's request to surplus Canon C350P Printers, Lakeland Equipment ID #34780, #34764, #34765, 34761, and one Phoenix Laminator no serial detectable on equipment.
 - D. Approve or disapprove deposit(s)
 - E. Reports
 1. Cash Voucher weekly report
 2. Emergency Management weekly report
 3. Engineer weekly reports

4. Planning & Zoning weekly reports
 5. E-911 weekly reports
 - F. Approve or disapprove cancellation of the following purchase order(s): #2398, #2679, and #2689.
 - G. Approve or disapprove calendar claims.
- IV. No action was taken regarding items removed from the Consent Agenda.
- V. Action Items
- A. A motion was made by Commissioner Kelley and seconded by Commissioner Edwards to approve Domestic Violence Awareness Month Proclamation. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - B. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve Help in Crisis request to place Domestic Violence awareness banner on courthouse lawn. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - C. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve up to \$8,000.00 from CARES Funding Account 1565 to cover the additional cost of lighting at rodeo arena. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - D. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Indigent Cremation Permit Fee Waiver Request from Leonard–Marker Funeral home for paupers’ burial assistance for Henry Thomas Pierce. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - E. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve Lease purchase agreement between Wagoner County District One and Armstrong Bank for purchase of a 2023 Caterpillar CS56B Vibratory Compactor Roller in the amount of \$216,672.00. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.

- F. No bids received and no action was taken regarding bid #2023-03 Class 1 Mid-size pickup truck with 4WD.
- G. A motion was made by Commissioner Edwards and seconded by Commissioner Kelley to approve 324A claim for Grace and Sons Invoice 22990184B, previously approved on October 11, 2022, for parcel appraisal fees on 273rd East Ave, State Project 32380. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
- H. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve Resolution #2022-129 ZNE-35-2022 & ZNE-36-2022 for Cairn Communities, in District 1, location: 27700 E. Admiral Place, Catoosa, OK. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
- I. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to appoint Joe Robson, Ben Meyer, and Rachel Cooper to the transition team for the potential formation of a city-county planning commission with the city of Broken Arrow. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
- J. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to allow Rachel Cooper to work with Gable Gotwals to review the existing Wagoner County Development Authority trust indentures to see if it will meet the needs of the County on future projects. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
- K. A motion was made by Commissioner Edwards and seconded by Commissioner Kelley to Table the joint meeting for Board of Commissioners and Economic Development to include agenda item suggestions related to the Wagoner County Fairgrounds. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.

VI. Old Business

- A. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to extend Wagoner County Burn Ban for 7 days. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - B. A motion was made by Commissioner Edwards and seconded by Commissioner Kelley to Table the purchase of a generator for the Election Board. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - C. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve the Courthouse Sally Port Door repairs by Overhead Door Company of Tulsa, Inc in the amount of \$5,093.00 to be paid from CARES Fund Account 1565. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - D. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve the purchase of radios for Emergency management from CARES Fund Account 1565. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - E. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve amendment to Clearwater Enterprises Gas Sales Agreement. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.
 - F. A motion was made by Commissioner Edwards to Deny Resolution #2022-127 ZNE-33-2022 appeal for Jeff McFarlane, in district 2, location: 23650 State Highway 51, Wagoner, OK. The motion died due to the lack of a second. A motion was then made by Commissioner Kelley and seconded by Commissioner Hanning to approve Resolution #2022-127 ZNE-33-2022 appeal for Jeff McFarlane. The motion was approved with the following votes cast: Hanning, aye; Edwards, no; Kelley, aye.
- VII. New Business – There was none.
- VIII. Public Comment: There was none.

- IX. Announcements – County Assessor Sandy Hodges announced that they have reached a settlement with Oneta power favorable to the County. County Assessor Sandy Hodges announced that her office has 4 surplus Cannon printers in great condition if any county office needs them.
- X. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to Recess at 10:25 a.m. The motion was approved with the following votes cast: Hanning, aye; Edwards, aye; Kelley, aye.

Presented and approved by the Wagoner County Commission on this 24th day of October 2022.

CHRIS EDWARDS, CHAIRMAN

TIM KELLEY, VICE-CHAIRMAN

JAMES HANNING, MEMBER
BOCC/LH/gp

ATTEST: LORI HENDRICKS
WAGONER COUNTY CLERK
